

EXHIBIT BUNDLE

INSURANCE DOCUMENTATION

Caldera Specialty Insurance (UK) Limited — Contractors' Combined Policy

Exhibit references	INS/1 (proposal extract); INS/2 (policy schedule and conditions); INS/3 (broker email 4.09.2023); INS/4 (reservation of rights, 2.02.2024); INS/5 (notification correspondence)
Policy	Caldera Specialty Insurance (UK) Ltd, policy CSI/CC/2023/40118
Period	1 October 2023 to 30 September 2024
Insured	Meridian Structures Limited and all subsidiary and associated companies
Broker	Wrenmoor & Tibb Ltd (a Lloyd's broker)
Limit of indemnity	£20,000,000 any one occurrence, public and products liability; £10,000,000 employers' liability

PART 1 — PROPOSAL / FAIR PRESENTATION DOCUMENT (exhibit INS/1), extract

Signed by Mr A. Ferris on behalf of Meridian Structures Limited, 1 September 2023.

Question	Answer given
Q14. Describe your temporary works management procedure.	'All temporary works are managed in accordance with BS 5975. A Temporary Works Coordinator independent of site production is appointed on every project.'
Q15. What level of independent design check is applied to temporary works?	'All temporary works are Category 3 checked by an independent external consultant.'
Q16. Have you had any HSE enforcement action, notices or investigations in the last five years?	'One Improvement Notice, Wakefield 2021, complied with and closed. No other matters.'
Q17. Are you aware of any circumstance which may give rise to a claim?	'No.'
Q22. Who within your organisation holds board-level responsibility for health and safety?	'The SHEQ Director.'
Declaration	'I declare that I have made a fair presentation of the risk and have disclosed every material circumstance which I know or ought to know, or have given the insurer sufficient information to put a prudent insurer on notice that it needs to make further enquiries.'

Facts said by Caldera to contradict the presentation

- Q15: the check applied at Brackenmoor Wharf and, on Caldera's investigation, on all eleven live projects, was Category 2, not Category 3. Category 2 is a lower level of independence under BS 5975:2019.
- Q14: the Temporary Works Coordinator at Brackenmoor Wharf was the Site Manager, who was not independent of site production and who simultaneously held the roles of Appointed Person and Permit Issuing Officer.
- Q16: HSE received concerns about this site on 14 June 2023 and 12 October 2023 (see D02 para. 3.3). Meridian says it was not notified of the June concern and that it has no record of the October contact. The proposal was signed on 1 September 2023, between the two.
- Q22: the SHEQ Director role had been removed in a restructure in February 2023, seven months before the proposal was signed. Mr Ferris signed the declaration.

PART 2 — POLICY TERMS (exhibit INS/2), extracts

Provision	Wording
General Condition 7 (expressed to be a condition precedent to liability)	'The Insured shall at all times comply with all statutory obligations and with the Insured's own written temporary works procedure. Compliance with this condition is a condition precedent to the liability of the Insurers.'
General Condition 12	'The Insured shall give written notice to the Insurers as soon as reasonably practicable of any occurrence which may give rise to a claim.'
General Condition 19 (fraud)	'If any claim is in any respect fraudulent, or if any fraudulent means or devices are used by the Insured or anyone acting on the Insured's behalf to obtain any benefit under this Policy, all benefit under this Policy shall be forfeited.'

Provision	Wording
Exclusion 4	'This Policy does not cover liability arising from any deliberate act or deliberate omission by any director or officer of the Insured where the consequences of that act or omission could reasonably have been expected.'
Contracting-out statement	The policy contains no statement complying with s.17 of the Insurance Act 2015 in respect of General Condition 19.

PART 3 — BROKER EMAIL (exhibit INS/3)

From: lorcan.tibb@wrenmoortibb.co.uk
To: d.pilbeam@calderaspecialty.co.uk
Cc: underwriting.support@calderaspecialty.co.uk
Sent: Mon 4 September 2023 16:03
Subject: Meridian Structures - renewal - clarification

“Dermot — further to our call this afternoon on the Meridian renewal. To be clear on the record: the answer at Q15 says Category 3 but what they actually run day to day is Category 2 with an external checker. I flagged this to you verbally and you said underwriters were content and it made no difference to the rate. I also mentioned that the SHEQ Director role was folded into the Construction Director earlier in the year. Grateful if you would confirm underwriters are happy on both points so I can close the file. Lorcan”

No reply to this email exists in Wrenmoor & Tibb's archive or in Caldera's. Mr Pilbeam left Caldera in April 2024 and, through solicitors, states he 'has no recollection of the conversation and would not have accepted a Category 2 check without a rating adjustment'. Caldera's underwriting file contains a note in Mr Pilbeam's hand dated 4 September 2023 reading 'W&T call — TW query — see email'. The email referred to is not on the file. Caldera's document retention policy provides for a seven-year retention of underwriting files.

PART 4 — NOTIFICATION AND CONDUCT OF THE CLAIM (exhibit INS/5)

Date	Event
14 Nov 2023	Incident.
15 Nov 2023	Meridian notifies Caldera by telephone through Wrenmoor & Tibb. Claim CSI-24-00817 opened.
24 Nov 2023	Meridian sends Caldera a claim pack. It includes a copy of certificate TWDC-BW-07 described in the covering letter as 'the independent Category 2 design check certificate for the bay, dated 27 October 2023'.
28 Nov 2023	Caldera appoints panel solicitors (Marchbank Doyle LLP) to act for Meridian in the HSE investigation and any civil claims, and appoints loss adjusters (Feltham Rossiter).
Dec 2023 - Jan 2025	Caldera funds the defence continuously. Total spend to 31 Jan 2025: £486,000. Caldera attends and participates in three case management conferences.
6 May 2024	Northmoor metadata report served, showing TWDC-BW-07 was created on 13 Nov 2023.
18 Jul 2024	Caldera's coverage counsel advises. Caldera continues to fund.
2 Feb 2025	Caldera writes reserving its rights (exhibit INS/4).
11 Apr 2025	Caldera purports to avoid the policy ab initio for breach of the duty of fair presentation, and in the alternative declines the claim under General Condition 7 and General Condition 19.

PART 5 — RESERVATION OF RIGHTS LETTER (exhibit INS/4), extract, 2 February 2025

“We write to reserve our position. Nothing done by us or on our behalf, including the appointment and funding of solicitors and adjusters, is to be taken as an admission of cover, a waiver of any right or an election to affirm the Policy. We reserve all rights including the right to avoid the Policy for breach of the duty of fair presentation, the right to rely on General Condition 7 as a condition precedent, and the right to rely on General Condition 19.”

PART 6 — THE ISSUES BETWEEN INSURER AND INSURED

Issue	Caldera	Meridian
Fair presentation (ss.3, 7, 8, Sch.1 Insurance Act 2015)	Q14, Q15, Q16 and Q22 were untrue. The breach was deliberate or reckless, so avoidance without return of premium.	Any misdescription was neither deliberate nor reckless; and in any event s.3(5)(b) and s.3(4) apply because Caldera knew or ought to have known the true position through Mr Pilbeam and the broker's email.
Remedy if the breach was not deliberate or reckless (s.8, Sch.1 paras 5-6)	Underwriters would have declined the risk entirely; alternatively would have charged a higher premium, so proportionate reduction applies.	No evidence of what a prudent underwriter would have done; Mr Pilbeam's note suggests the point was considered and accepted.
General Condition 7 as condition precedent (s.11 Insurance Act 2015)	Non-compliance with the temporary works procedure defeats the claim.	s.11 applies: the term relates to a particular kind of loss or a particular locality/time, and non-compliance could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred; the burden lies on the insured to show this.
General Condition 19 / fraudulent device	The submission of TWDC-BW-07 on 24 November 2023, described as genuine, was a fraudulent device deployed to obtain benefit; all benefit is forfeit.	Versloot Dredging BV v HDI Gerling Industrie Versicherung AG [2016] UKSC 45: a collateral lie which is irrelevant to the merits of an otherwise valid claim does not forfeit it. Further, GC19 is more onerous than s.12 of the 2015 Act and no s.17 transparency statement was given.
Waiver / election	The reservation of 2 February 2025 preserves everything; mere investigation and funding is not election.	Caldera knew the essential facts by 6 May 2024 at the latest and continued to fund and to conduct the defence for nine months without reservation. That is an unequivocal election to affirm, alternatively estoppel by convention or waiver by estoppel.
Third Parties (Rights against Insurers) Act 2010	Any defence good against Meridian is good against a third party claimant.	Relevant to Mr Aksoy's claim against TowerLine (in liquidation) and to the dependants' claim; note also the separate question whether TowerLine's own policy had lapsed (see below).

PART 7 — TOWERLINE ACCESS LTD: A SEPARATE COVERAGE PROBLEM

- TowerLine's public and employers' liability policy with Brackenridge Mutual expired at midnight on 31 October 2023. The renewal was not completed.
- A broker email from Halstead Vine Insurance Brokers to TowerLine dated 30 October 2023 states: 'Underwriters have agreed to hold covered on existing terms pending receipt of the completed proposal. You are covered from 1 November. Please return the forms this week.'
- The proposal was never returned. Brackenridge Mutual denies that cover was ever bound and says its broker had no authority to hold covered.
- Meridian's contract with TowerLine required TowerLine to maintain £10,000,000 public liability cover and to produce a certificate annually. The last certificate held by Meridian expired 31 October 2023. Meridian did not chase it. Meridian continued to allow TowerLine to work on site.
- TowerLine went into creditors' voluntary liquidation on 3 February 2025. Mr Aksoy's claim against TowerLine depends on the Third Parties (Rights against Insurers) Act 2010 and therefore on whether cover was bound orally.
- Mr Aksoy's alternative route is against Meridian directly. Meridian denies it owed him a duty, he being the employee of an independent contractor, and relies on the line of authority on the limited duties of a principal contractor. He relies on Meridian's actual control of loading operations, the permit system, and regs. 13 and 15 CDM 2015.